

Rules.

11. The Lord Chancellor may make rules for prescribing anything which may under this Act be prescribed, and all rules so made shall be laid so soon as may be before both Houses of Parliament.

Definitions.

12. In this Act, unless the context otherwise requires,—

The expression “general dealer” means any person buying, otherwise than at a public auction held by a licensed auctioneer, or selling old metal, scrap metal, broken metal or partly manufactured metal goods in quantities, at each particular purchase or sale, of less, in the case of iron, than ten hundredweight, or, in the case of copper, of less than fifty-six pounds weight, or, in the cases of lead, zinc, spelter, machinery or tools, respectively, of less than one hundred and twelve pounds weight, or buying or selling in any quantities bottles, syphons, tools, bags, sacks, packing cases, boxes, articles of pottery or glass, whether such person deals in those articles only or together with second-hand goods or marine stores, but the said expression does not include a pawnbroker or a licensed dealer in plate; and

The expression “licensing authority” means, in the police district of Dublin Metropolis, any divisional justice of that district, and in any other place two or more justices of the peace sitting in petty sessions.

Short title.

13. This Act may be cited as the General Dealers (Ireland) Act, 1903.

Commencement of Act.

14. This Act shall come into operation on the first day of January one thousand nine hundred and four.

CHAPTER 45.

An Act to make better provision for regulating the Employment of Children. [14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled and by the authority of the same, as follows:

Power to make byelaws for regulating the employment of children.

1. Any local authority may make byelaws—

(i) prescribing for all children, or for boys and girls separately, and with respect to all occupations or to any specified occupation,—

(a) the age below which employment is illegal; and

(b) the hours between which employment is illegal; and

(c) the number of daily and weekly hours beyond which employment is illegal:

(ii) prohibiting absolutely or permitting, subject to conditions, the employment of children in any specified occupation.

2. Any local authority may make byelaws with respect to street trading by persons under the age of sixteen and may by such byelaws—

Power to make byelaws for the regulation of street trading by persons under sixteen.

- (a) prohibit such street trading, except subject to such conditions as to age, sex, or otherwise, as may be specified in the byelaw, or subject to the holding of a licence to trade to be granted by the local authority;
- (b) regulate the conditions on which such licences may be granted, suspended and revoked;
- (c) determine the days and hours during which, and the places at which, such street trading may be carried on;
- (d) require such street traders to wear badges;
- (e) regulate generally the conduct of such street traders:

Provided as follows:—

- (1) The grant of a licence or the right to trade shall not be made subject to any conditions having reference to the poverty or general bad character of the person applying for a licence or claiming to trade;
- (2) The local authority, in making byelaws under this section, shall have special regard to the desirability of preventing the employment of girls under sixteen in streets or public places.

3.—(1) A child shall not be employed between the hours of nine in the evening and six in the morning: Provided that any local authority may, by byelaw, vary these hours either generally or for any specified occupation.

General restrictions on employment of children.

(2) A child under the age of eleven years shall not be employed in street trading.

(3) No child who is employed half-time under the Factory and Workshop Act, 1901, shall be employed in any other occupation.

(4) A child shall not be employed to lift, carry or move anything so heavy as to be likely to cause injury to the child.

(5) A child shall not be employed in any occupation likely to be injurious to his life, limb, health or education, regard being had to his physical condition.

(6) If the local authority send to the employer of any child a certificate, signed by a registered medical practitioner, that the lifting, carrying or moving of any specified weight is likely to cause injury to the child, or that any specified occupation is likely to be injurious to the life, limb, health or education of the child, the certificate shall be admissible as evidence in any subsequent proceedings against the employer in respect of the employment of the child.

4.—(1) A byelaw made under this Act shall not have any effect until confirmed by the Secretary of State, and shall not be so confirmed until at least thirty days after the local authority have published it in such manner as the Secretary of State may by general or special order direct.

General provisions as to byelaws.

(2) The Secretary of State shall, before confirming any byelaw, consider any objections to it which may be addressed to him by persons affected or likely to be affected thereby.

(3) The Secretary of State may, before confirming any byelaw, order that a local inquiry be held with respect to the byelaw or with respect to any objections thereto. The person holding any such inquiry shall receive such remuneration as the Secretary of State may determine, and that remuneration and the expenses of the local inquiry shall be paid by the local authority making the byelaw.

(4) Byelaws made under this Act may apply either to the whole of the area of the local authority or to any specified part thereof.

(5) Byelaws made by a county council shall not be of any force or effect within any borough or urban district the council of which is constituted a local authority under this Act.

57 & 58 Vict.
c. 41.

(6) Byelaws under the Prevention of Cruelty to Children Act, 1894, shall be made by the same authority and confirmed in the same way as byelaws under this Act.

Offences and
penalties.

5.—(1) If any person employs a child or other person under the age of sixteen in contravention of this Act or of any byelaw under this Act, he shall be liable on summary conviction to a fine not exceeding forty shillings or, in case of a second or subsequent offence, not exceeding five pounds.

(2) If any parent or guardian of a child or other person under the age of sixteen has conducted to the commission of the alleged offence by wilful default, or by habitually neglecting to exercise due care, he shall be liable on summary conviction to the like fine.

(3) If any person under the age of sixteen contravenes the provisions of any byelaw as to street trading made under this Act, he shall be liable on summary conviction to a fine not exceeding twenty shillings and, in case of a second or subsequent offence, if a child, to be sent to an industrial school and, if not a child, to a fine not exceeding five pounds.

(4) In lieu of ordering a child to be sent under this section to an industrial school, a court of summary jurisdiction may order the child to be taken out of the charge or control of the person who actually has the charge or control of the child, and to be committed to the charge and control of some fit person who is willing to undertake the same, until such child reaches the age of sixteen years: And the provisions of sections seven and eight of the Prevention of Cruelty to Children Act, 1894, shall, with the necessary modifications, apply to any order for the disposal of a child made under this sub-section.

Offences by
agents or work-
men and by
parents.

6.—(1) Where the offence of taking a child into employment in contravention of this Act is in fact committed by an agent or workman of the employer, such agent or workman shall be liable to a penalty as if he were the employer.

(2) Where a child is taken into employment in contravention of this Act on the production, by or with the privity of the parent, of a false or forged certificate, or on the false representation of his parent that the child is of an age at which such employment is not in contravention of this Act, that parent shall be liable to a penalty not exceeding forty shillings.

(3) Where an employer is charged with any offence under this Act, he shall be entitled, upon information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and if, after the commission of the offence has been proved, the court is satisfied that the employer had used due diligence to comply with the provisions of the Act, and that the other person had committed the offence in question without the employer's knowledge, consent or connivance, the other person shall be summarily convicted of the offence, and the employer shall be exempt from any fine.

(4) When it is made to appear to the satisfaction of an inspector or other officer charged with the enforcement of this Act, at the time of discovering the offence, that the employer had used all due diligence to enforce compliance with this Act, and also by what person the offence had been committed, and also that it had been committed without the knowledge, consent or connivance of the employer and in contravention of his order, then the inspector or officer shall proceed against the person whom he believes to be the actual offender in the first instance, without first proceeding against the employer.

7. With respect to summary proceedings for offences and fines under this Act and any byelaws made thereunder, the information shall be laid within three months after the commission of the offence. Limitation of time.

8. If it appear to any justice of the peace, on the complaint of an officer of the local authority acting under this Act, that there is reasonable cause to believe that a child is employed in contravention of this Act in any place, whether a building or not, such justice may by order under his hand empower an officer of the local authority to enter such place at any reasonable time, within forty-eight hours from the date of the order, and examine such place and any person therein touching the employment of any child therein. Power of officer of local authority to enter place of employment.

Any person refusing admission to an officer authorised by an order under this section, or obstructing him in the discharge of his duty, shall for each offence be liable on summary conviction to a penalty not exceeding twenty pounds.

9. Byelaws made under this Act shall not apply to any child above twelve employed in pursuance of the Factory and Workshop Act, 1901, or the Metalliferous Mines Regulation Act, 1872, or the Coal Mines Regulation Act, 1887, so far as regards that employment; and, in the application of section three to children employed under those Acts, the inspectors appointed under those Acts shall be substituted for the local authority in respect of such employment. Employment in factories.
1 Edw. 7. c. 22.
35 & 36 Vict.
c. 77.
50 & 51 Vict.
c. 58.

10. Nothing in this Act or in any byelaw made thereunder shall apply to the exercise of manual labour by any child under order of detention in a certified industrial or reformatory school, or by any child while receiving instruction in manual labour in any school. Saving for industrial and other schools.

Incorporation
and amend-
ment of s. 3 of
57 & 58 Vict.
c. 41.

11. Section three of the Prevention of Cruelty to Children Act, 1894 (which regulates the employment of children in public entertainments), shall have effect as if re-enacted in this Act: Provided as follows:—

- (1) A licence under that section shall not be granted to any child under the age of ten years; and
- (2) Any inspector or other officer charged with the execution of this Act shall have and may exercise all the powers of an inspector of factories and workshops under that section, and that section shall apply accordingly.

Expenses of
Act in England
and Wales.

12. Any expenses incurred by a local authority in England and Wales in carrying into effect the provisions of this Act or any byelaw made thereunder shall be defrayed, in the case of a county, out of the county fund and, in the case of a borough, out of the borough fund or borough rate and, in the case of any other urban district, out of any rate or fund applicable for defraying expenses incurred in the execution of the Public Health Acts: Provided that a county council shall not raise any sum on account of their expenses under this Act within any borough or urban district the council of which is a local authority under this Act.

Definitions.

13. In this Act—

The expression “child” means a person under the age of fourteen years:

The expression “guardian,” used in reference to a child, includes any person who is liable to maintain or has the actual custody of the child:

The expressions “employ” and “employment,” used in reference to a child, include employment in any labour exercised by way of trade or for the purposes of gain, whether the gain be to the child or to any other person:

The expression “local authority” means, in the case of the City of London, the mayor, aldermen and commons of that city in common council assembled, in the case of a municipal borough with a population, according to the census of nineteen hundred and one, of over ten thousand, the borough council, and in the case of any other urban district with a population, according to the census of nineteen hundred and one, of over twenty thousand, the district council, and elsewhere the county council:

The expression “street trading” includes the hawking of newspapers, matches, flowers and other articles, playing, singing or performing for profit, shoe-blackening and any other like occupation carried on in streets or public places.

Application to
Scotland.

14. In the application of this Act to Scotland—

- (1) The Secretary for Scotland shall be substituted for the Secretary of State:
- (2) “The sheriff or sheriff-substitute” shall be substituted for “a court of summary jurisdiction”:
- (3) Any fine or penalty under this Act shall be recoverable by imprisonment in terms of the Summary Jurisdiction Acts:

(4) The expression "local authority," in sections one and three of this Act, shall mean the school board; and in section two of this Act shall mean, in the case of a royal, parliamentary or police burgh having, within its boundary for police purposes, according to the census of nineteen hundred and one, a population of or exceeding seven thousand, and in the case of the burgh of Coatbridge, the town council, and elsewhere the county council, and for the purposes of section two every burgh, other than those herein-before specified, shall be held to form part of the county within which it is situated: Provided that in section eight of the Local Government (Scotland) Act, 1889, the expression "purposes herein-after mentioned" shall be deemed to include the purposes of this Act:

(5) Nothing in this Act shall affect the power of the school board to grant exemptions in certain employments, as provided by sub-section three of section seven of the Education (Scotland) Act, 1878, and the expression "this Act" in the said section shall be deemed to include the Employment of Children Act, 1903:

41 & 42 Vict.
c. 78.

(6) A byelaw shall not be made by a council under this Act until the expiry of a period of one month after such byelaw, as proposed to be made, has been communicated to the clerk to each school board of a parish, burgh or district comprised or partly comprised within the area of such council for the purposes of this Act, and such council shall give due consideration to any observations received from any such school board within such period; and

(7) Nothing in this Act shall make it lawful for any child to be employed in contravention of section six of the Education (Scotland) Act, 1878, or section two of the Education (Scotland) Act, 1901:

1 Edw. 7. c. 9.

(8) Section two hundred and seventy-six of the Burgh Police (Scotland) Act, 1892, is hereby repealed.

55 & 56 Vict.
c. 55.

15. Any expenses incurred by a local authority in Scotland in carrying into effect the provisions of this Act or any byelaws made thereunder shall be paid, where the local authority is a county council, out of the public health general assessment leviable within the county or a district of the county, provided that in any royal, parliamentary or police burgh having, according to the census of nineteen hundred and one, a population of less than seven thousand, a proportion of such expenses, corresponding to the valuation of such burgh, shall be paid to the county council out of the public health general assessment leviable in such burgh, in compliance with a requisition to that effect to be sent to the town council of such burgh annually not later than the month of October in each year, and, where the local authority is a town council, out of the public health general assessment, and shall be paid, where the local authority is a school board, out of the school rate.

Expenses of
Act in Scot-
land.

Application to
Ireland.

16. In the application of this Act to Ireland—

- (1) The Lord Lieutenant shall be substituted for the Secretary of State :
- (2) The expression "local authority" means, in the case of an urban district with a population, according to the census of nineteen hundred and one, of over five thousand, the district council and elsewhere the county council :
- (3) Proceedings under this Act may be brought by or in the name of any officer of the local authority or by an officer of a school attendance committee or by a constable :
- (4) All expenses and costs to be incurred by a local authority in the execution of this Act shall be defrayed, in the case of the council of a county borough or of a district council, out of any rate or fund applicable to the purposes of the Public Health (Ireland) Act, 1878, and, in the case of a county council, out of the county fund, and in such case the amount required therefor may be raised by means of the poor rate equally over so much of the county as does not comprise any urban district the council whereof is constituted a local authority under this Act.

41 & 42 Vict.
c. 52.

Commence-
ment of Act.

17. This Act shall come into operation on the first day of January one thousand nine hundred and four.

Short title.

18. This Act may be cited as the *Employment of Children Act, 1903.*

CHAPTER 46.

An Act to make certain amendments of the Law relating to Customs and Inland Revenue, and of the Law relating to the powers and duties of the National Debt Commissioners. [14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

CUSTOMS AND EXCISE.

Molasses used
for food for
stock.
3 Edw. 7. c. 7.

1.—(1) Molasses imported into Great Britain or Ireland shall not be liable to duty under section two of the Finance Act, 1901, if it is to be used solely for the purpose of food for stock and such conditions are complied with in respect thereof, as to proof, security and otherwise, as may be imposed by the Commissioners of Customs for the purpose of protecting the revenue.

(2) An allowance at the rate of one shilling per hundredweight shall be made to a refiner on molasses produced in Great Britain